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|----|------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|    |                                                                              | <p>(Reply, Pg. 5, fn. 3.) Pacheco shall be prepared to discuss in which published cases the quoted language may be found. If Pacheco cannot provide the citations, Pacheco shall be prepared to address how he came up with this language and the reference to these two cases. If the court decides to issue an order to show cause, a separate hearing will be set.</p> <p>Pacheco shall give notice.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| 56 | <b><i>Off calendar</i></b>                                                   |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| 57 | <b><i>Joel Orozco-Rivera v. Santa Ana Unified School District et al.</i></b> | <p>Defendant Santa Ana Unified School District's ("Defendant SAUSD") motion for summary judgment is granted.</p> <p>Defendant SAUSD moves for summary judgment on Plaintiff Joel Orozco-Rivera's ("Plaintiff") complaint. Defendant SAUSD contends it is immune from liability under Education Code section 44808. (ROA 100 [Not. of Mot. at p. 2].)</p> <p><b><i>Legal Standard</i></b></p> <p>"[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.) A "party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact. . . ." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.) "A prima facie showing is one that is sufficient to support the position of the party in question." (Id. at p. 851.) A defendant moving for summary judgment satisfies his or her initial burden by showing that one or more elements of the cause of action cannot be</p> |

established or that there is a complete defense to the cause of action. (Code Civ. Proc., § 437c, subd. (p)(2).) The scope of this burden is determined by the allegations of the plaintiff's complaint. (FPI Development v. Nakashima (1991) 231 Cal.App.3d 367, 381-382 [pleadings serve as the outer measure of materiality in a summary judgment motion]; 580 Folsom Associates v. Prometheus Development Co. (1990) 223 Cal.App.3d 1, 18-19 [defendant only required to defeat allegations reasonably contained in the complaint].)

Once a defendant meets its prima facie showing, the burden shifts to the plaintiff to show by reference to specific facts the existence of a triable issue as to that affirmative defense or cause of action. (Aguilar v. Atlantic Richfield Co., supra, 25 Cal.4th at p. 850.) To meet this burden, the plaintiff must present substantial and admissible evidence creating a triable issue. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 163.) Theoretical, imaginative, or speculative submissions are insufficient to stave off summary judgment. (Doe v. Salesian Society (2008) 159 Cal.App.4th 474, 481; Bushling v. Fremont Med. Center (2004) 117 Cal.App.4th 493, 510.)

### ***Negligence Claims Against a School District***

Plaintiff's (remaining) claims against Defendant SAUSD include negligence, negligent supervision, and negligent retention/hiring. (See ROA 2 [Complaint], 48 [12/13/24 Minute Order].) Plaintiff alleges Defendant SAUSD was negligent in its supervision of Plaintiff (by failing to keep co-defendant, Lee Dinnie Henry, away from Plaintiff), and in providing reasonable supervision and retention of Defendant Henry. (See Compl. at ¶¶ 40, 42-43, 71.)